



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

MAY 8 1991

DOT-E 10585

1. Vulcan Materials Company, Birmingham, Alabama, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a flammable gas residue for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT Specification 112J340W tank car tank which is overdue for tank test and provides no relief from any regulations other than as specifically stated.
2. BASIS. This emergency exemption is based on Vulcan Materials Company's application of April 23, and 29, 1991, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to preclude serious economic loss.
3. HAZARDOUS MATERIALS (Descriptor and class). Methyl chloride, classed as a flammable gas.
4. PROPER SHIPPING NAME (49 CFR 172.101). Methyl Chloride.
5. REGULATION AFFECTED. 49 CFR 173.31 (c).
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 112J340W tank car tank (GATX 25641) meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car tank is overdue for test.
8. SPECIAL PROVISIONS.
 - a. Tank cars must be marked "DOT-E 10585" in four inch letters on a contrasting background above the DOT specification number.
 - b. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

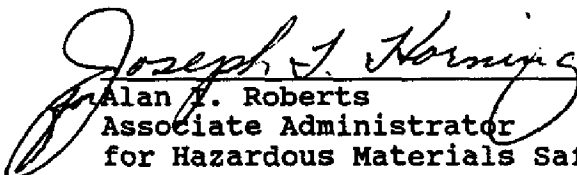
Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

c. Shipment must be between Dow Corning, in Carrollton, Kentucky to Berwind Railway located in Neodesha, Kansas using the most direct route available via CSXT-East St. Louis-MP, a distance of approximately 771 miles.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. July 31, 1991.

Issued at Washington, D.C.


Alan T. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 8 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.